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ABC Company

Due Diligence Document Request List

LAWYERS' MENTOR

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Due Diligence Document Request List

In connection with the proposed financing, please collect, organize and provide the following documents. In the event that no responsive information exists or the request is not applicable, please indicate in writing. A handwritten notation on a copy of this request list under the applicable request is sufficient. Unless the context requires otherwise, all requests include the "Company" and all of the direct and indirect subsidiaries and affiliates (ABC Company).

1. Organization; Qualification; Good Standing

1.1 Charter Documents

1.1.1 Certified copies of the Certificate of Incorporation and Bylaws (or other charter documents) of the Company (and any corporation in which the Company has an equity interest) since inception.

1.1.2 Current corporation licenses and tax certificates for each company.

1.2 Qualification

A list of states and countries in which the Company is qualified to do business as a foreign corporation. Please describe briefly any activity by the Company in each state in which it is not qualified to do business.

2. Subsidiaries

A description of all entities in which the Company directly or indirectly controls or owns any interest and the relationship of the Company with each such entity.

3. Capitalization

3.1 Capital Stock

3.1.1 A copy of the stock books with respect to each class of capital stock interests issued by the Company since inception.

3.1.2 A summary of the classes and series of capital stock interests authorized and the number of shares/interests of each class or series issued and outstanding.

3.1.3 A sample of stock interests certificates and any other outstanding securities.

3.1.4 All agreements, warrants, options, pledges or other rights to purchase or acquire any shares of capital stock or other securities of the Company, and any commitments with respect to any of the foregoing.

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3.1.5 All agreements or other instruments pursuant to which capital stock has been issued.

3.1.6 Any permits or a description of the exemptions relied upon (federal and state) for issuance or transfer of securities.

3.2 Shareholder Information

3.2.1 A schedule of all issuances of capital stock and grants of any stock options, warrants or convertible securities, listing the names of the issuees or grantees, the amounts issued or granted, the dates of the issuances or grants and the consideration received.

3.2.2 A list of all current shareholders (record holders as well as beneficial holder, if different), including address and number of shares held.

3.2.3 Lists of all option, warrant and other security holders (record holders as well as beneficial holders, if different), including address and number and type of shares issued or issuable upon exercise or conversion.

3.2.4 All agreements among security holders, or between any security holder and the Company, with respect to voting, grants of proxies, dividend declaration or payment, rights of first offer or first refusal, cosale or participation rights, observation or information rights, distributions to shareholders or sale or other disposition of shares.

3.2.5 Annual reports and any other communications to shareholders during the last five years.

3.3 Offering Circulars

Any copies of offering circulars or prospectuses and other documents relating to the sale of capital stock or debt.

4. Conflicts With Documents

A list of any violations, conflicts, breaches or creation of liens as a result of the transactions contemplated by the sale of the Series A Preferred Stock with:

Articles of Incorporation or Bylaws.

Any financing agreement, material lease or other agreement.

5. Governmental Consents

A list of all governmental consents required in connection with the sale of the Series A Preferred Stock.

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6. Financial Statements

6.1 Financial Statements

All financial statements for each of the past five years and interim statements.

6.2 Capital Expenditures

Documents for the capital expenditures program for each of the last five years and on its future capital expenditures program, showing what future expenditures are already committed.

6.3 Correspondence With Accountants

Copies of all correspondence with accountants for each of the last five years, including management letters.

6.4 Attorneys' Letters

Copies of any attorneys' letters to accountants for each of the last five years.

7. Undisclosed Liabilities; Changes

7.1 Undisclosed Liabilities

A list of any debts, liabilities or obligations of any nature, whether accrued, absolute, contingent or otherwise, that are not included in the Financial Statements provided under Item 6.

7.2 Changes in Financial Condition

A description of any material transaction since the date of the Financial Statements provided under Item 6, including

7.2.1 any change in the condition (financial or other) of properties, assets, liabilities, business or prospects of the Company;

7.2.2 any increase or change in the compensation to any directors, officers, managers, employees, salespersons, or agents;

7.2.3 any material change in the accounting methods or practices followed by the Company;

7.2.4 any material debt, obligation or liability (whether absolute or contingent) incurred by the Company (whether or not presently outstanding);

7.2.5 any sale, lease, license or other disposition of any property, including intellectual property or other intangible asset;

7.2.6 any labor condition;

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7.2.7 any change in the contingent obligations by way of guaranty, endorsement, indemnity, warranty or otherwise;

7.2.8 any waiver of a valuable right or a material debt owed;

7.2.9 any direct or indirect loans to any member, manager, shareholder, employee, officer or director, other than advances made in the ordinary course of business; or

7.2.10 any declaration or payment of any dividend or other distribution of the assets of the Company.

8. Intellectual Property

8.1 Intellectual Property

A list of all patents, patent applications, trade names, trademarks, trademark applications, trade dress, service marks, copyright, trade secrets, information, proprietary rights and processes ("***Intellectual Property***") necessary for the Company's business as now conducted, or as proposed to be conducted.

8.2 Licenses

A list of any options or licenses relating to the Intellectual Property, either granted by the Company or by a third party, or by which it is bound.

8.3 Violations of Intellectual Property Rights

A list of all communications alleging that the Company is violating, or by conducting its business as proposed, would materially violate, any of the intellectual property of any other person.

8.4 Employee Obligations

A description of any employees obligated under any agreement, or subject to any judgment or order, that would interfere with the use of such employee's best efforts to promote the interests of the Company or that would conflict with the Company's business as proposed to be conducted.

8.5 Confidentiality Agreements

All confidentiality, secrecy and nondisclosure agreements with any member, manager, employee, officer, director, shareholder or consultant. Where standard forms are used, a copy of each such form and description of any deviations from or exceptions to any such form.

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8.6 Invention Agreements

All agreements with any employee, officer, director, shareholder or consultant relating to assignment of property to the Company, including, without limitation, inventions, patents, copyrights or other intangible property.

9. Litigation

9.1 Past Litigation

A description of all litigation or threatened litigation concluded or settled within the past five years and all material documentation (including court files, significant correspondence, settlement agreements, decrees, orders and judgments).

9.2 Current Litigation

A description of all current or threatened litigation and all material documentation, including litigation files.

9.3 Waiver of Claims

A description of all waivers or agreements canceling or surrendering claims or rights of substantial value.

10. Defaults

A list of any defaults under the Articles of Incorporation, Bylaws or any material agreement, or with respect to any order of any court or domestic or foreign governmental agency.

11. Tax Matters

11.1 Tax Returns

Federal, state and local returns since inception.

11.2 IRS Matters

A list of all audit adjustments proposed by the Internal Revenue Service for the last five years which have been audited and a list of any pending tax matter, including audits, extensions of time, waivers of statutes of limitations, deficiency/assessments, etc.

11.3 Tax Liens

List of any tax liens.

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12. Management/Personnel

12.1 List of Managers, Officers, Directors and Key Employees

12.1.1 A list of names, ages and addresses of managers, officers and directors and a description of present and proposed management structure.

12.1.2 A list of members of the Board of Directors (the "***Board***") by year for each of the last five years, including names and addresses as well as telephone, fax and email numbers.

12.1.3 A list of managers, key officers and employees and a description of each person's role in the business.

12.2 Compensation

12.2.1 A list of the amounts of total annual compensation and the forms of compensation (salary, commissions, personal benefits, annuities, options, bonuses, etc.) paid during the past year and to be paid in the current year to each manager, officer, director and key employee, and to any other employee if his or her total annual compensation for the last year or this year exceeds $75,000. Include compensation from any source paid or made available on behalf of the Company.

12.2.2 A schedule of perquisites available to any person listed above.

12.2.3 A payroll roster of all employees as of a recent date.

12.3 Director and Consultant Fees

A schedule of all fees paid to any member of the Board or any consultant to the Company during the last five years.

12.4 Transactions With Management

A brief description of any transaction (other than compensation described above), and copies of any material contracts or agreements, with or pertaining to the Company and to which any member, manager, director, officer, key employee or shareholder (or family member of any such person) is directly or indirectly a party, an obligor or a beneficiary.

12.5 Employees

12.5.1 An evaluation of employee turnover rates.

12.5.2 A list of any key employees intending to terminate.

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12.6 Employment Contracts

All employment and consulting contracts. When standard forms are used, include standard form and deviations therefrom.

12.7 Employee Benefit Plans

All employee benefit plans or rights, including stock plans, stock option plans, pension plans, incentive plans, ERISA plans and executive or management bonus, sales bonus, general profit-sharing, medical, life and accident insurance, retirement programs and all agreements related thereto and information as to funding of any of the foregoing.

12.8 Unions

All union contracts. Also include any other material information relating to the Company's relationship with any union and any union organizing activity during the last five years.

12.9 Immigration Status

A list of all key employees, managers, officers or directors who are not citizens of the United States and their immigration status.

12.10 Labor Matters

A description of any labor problems the Company has experienced or reasonably expects to experience in the near future, including work stoppage.

13. Financing

13.1 Credit Agreements

All agreements (together with all amendments, documentation and correspondence) relating to the borrowing of money, including bank lines of credit, letters of credit, indentures, notes, term loan and revolving credit agreements and debt instruments issued thereunder. All recent evidence of compliance with lending agreements.

13.2 Bank Accounts

A list of all bank accounts and safe deposit boxes and names of all persons authorized to draw on them or have access thereto.

13.3 Loans to, or Guarantees of Obligations of, Third Parties

All agreements relating to loans by the Company to, or guarantees of the obligations of, other persons or entities.

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13.4 Guarantees

All guarantees by management, shareholders or others of debt or performance of or by the Company.

13.5 Security Agreements

All currently effective security agreements (including a recent UCC search) covering assets of the Company, such as mortgages, pledges, liens or security interests in significant personal property, such as receivables, inventory or equipment.

13.6 Notes Receivable

Copies of all notes receivable, together with all related guarantees and security agreements.

14. Customers

14.1 Credit Agreements

Forms of agreement, and any deviations, for providing credit purchases to customers and a schedule of all accounts in excess of $25,000.

14.2 Accounts Receivable Analysis

An accounts receivable analysis and aging study.

14.3 Warranty Claims

A description of any warranty claims and status.

15. Other Agreements

15.1 Marketing and Distributorship

All marketing and distributorship contracts, agreements or arrangements.

15.2 Joint Ventures or Partnerships

All joint venture or partnership contracts, agreements or arrangements.

15.3 Royalty and Commission

All contracts, agreements or arrangements pursuant to which the Company pays or receives a royalty, commission, brokerage fee or agency fee.

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15.4 Sales Contracts

All product sales or supply contracts, agreements or arrangements (including government contracts) with customers, including standard form sales contracts.

15.5 Purchase Contracts

All contracts, agreements or arrangements for the purchase of products for resale.

15.6 Management and Service Contracts

All management or service contracts, agreements or arrangements for management, maintenance or servicing of any facilities.

15.7 Facilities

All contracts, agreements or arrangements for construction of facilities and a description of any performance guarantees or special agreements relating to financing, performance or operation of such facilities.

15.8 Advertising Contracts

All advertising contracts, agreements or arrangements.

15.9 Supply Contracts

All contracts, agreements or arrangements with suppliers.

15.10 Acquisitions, Sales and Mergers

All documents relating to any acquisitions, sales, mergers or other dispositions of companies, operations or facilities now pending or made since inception. A description of any such transactions.

15.11 Computer Systems

License agreements for computer systems, service and maintenance agreements related thereto, and any other contracts, agreements or arrangements relating to the Company's computer systems and communications systems.

15.12 Noncompete Provisions

A description of any provisions which purport to restrict the Company's ability to compete, whether imposed by agreement, court order, oral understanding or otherwise.

15.13 Contracts Outside Ordinary Course of Business

All contracts, agreements or arrangements outside the ordinary course of business.

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15.14 Other Significant Contracts

All significant contracts, agreements or arrangements other than those already enumerated.

16. Property

16.1 Real Property--Owned

A schedule of real property acquired or held during the last five years, including each parcel's location, a brief description of its use and function (i.e., factory, warehouse, office), the date of its purchase, description of how title is held, description of any title insurance and the amount and nature of any mortgage, lien or other encumbrance.

16.2 Real Property--Leased

16.2.1 A schedule of real property leased during the last five years, including each parcel's location, a brief description of its use and function, copies of any lease term sheets or letters of intent and copies of the current lease and any amendments thereto.

16.2.2 A description of any proposed or anticipated leased real property, including copies of any term sheets or letters of intent and copies of any draft lease documentation currently under consideration or negotiation.

16.3 Real Property--Options

Copies of any option agreements, earnest money agreements or other agreements that involve the purchase or sale of real property.

16.4 Environmental/Structural Reports

Copies of any memos, reports or other information relating to structural, environmental or other problems with any owned or leased facilities or real property.

16.5 Furniture or Equipment Leases

Documentation of any leases for furniture or equipment or other personal property.

16.6 Capital Leases

Documentation of any leases for capital assets, including any sale/lease-back agreements and financing leases.

16.7 Conditional Sale Agreements

Documentation of any conditional sale agreements, mortgages or similar arrangements relating to the acquisition of assets on an installment basis.

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16.8 List of Defaults

A list of any encumbrances or defaults by any party with respect to any agreements relating to property or assets or the Company.

17. Insurance

A copy of all insurance policies covering the Company, its assets, operations or any employee, manager, officer or director of the Company.

18. Minute Books

18.1 All minutes of meetings (and consents in lieu of meetings) of the Board, permanent committees of the Board, and shareholders since inception.

18.2 All Board packages, including meeting agendas, resolutions, consents, plans, budgets and explanatory materials during the last five years.

19. Compliance With Laws; Permits

19.1 Permits

All permits for conduct of business, including any current or pending governmental permits, licenses, grants and tax concessions or certificates.

19.2 Citations

All citations for each of the last five years for failure to comply with any applicable law.

19.3 Compliance Programs

A brief description of the measures, if any, being taken to ensure compliance with applicable laws.

19.4 Investigations

A description of any current or threatened investigation by any government authority and all documentation.

19.5 Environmental Matters

A summary of any environmental issues arising from or related to the business operations or facilities and properties, and copies of any related documentation and correspondence.

19.6 Reports to Governmental Agencies

Copies of any reports to or correspondence with any federal, state or local governmental agency for each of the last five years.

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20. Registration Rights

All contracts and agreements or understandings regarding the registration of securities of the Company under federal or state securities laws.

21. Other Information

21.1 Brochures and Literature

Documents on all brochures, reports, studies or publications relating to or describing the Company and its products, including sales and marketing literature.

21.2 Press Clippings and Releases

Press clippings, articles and releases relating to the Company and the industry for each of the last five years.

21.3 Analyses and Reports

Analyses of the Company or its industry prepared by investment bankers, engineers, management consultants, accountants or others, including marketing studies, credit reports, geological reports and other types of reports, financial or otherwise.

21.4 Schedule of Proceeds

A schedule of the currently projected uses of proceeds to be obtained from the offering of securities.

22. Reports to Governmental Agencies

Copies of any reports to or correspondence with any federal, state or local governmental agency for each of the last five years.

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